

JUVENILE DEFENSE

Juvenile Defense Attorney



Any individual under the age of 18 that has not been transferred to an adult court is considered a juvenile under Tennessee law.

Although similar in nature to the standard “adult” court system in Tennessee, juvenile court tends to have its own process regarding the handling of cases. For example, although juvenile court has confidentiality regarding records, juveniles are not afforded jury trials or bail. Most importantly, both juvenile court and “adult” court provide the right to an attorney. Although juvenile court is generally less formal than “adult” court, the procedures and rules must be strictly followed.

Only certain juvenile criminal offenses allow for juvenile detention. Police have discretion to return the juvenile to their parents within those certain offenses if the offense is not serious and the juvenile’s behavior is appropriate. No child may be detained for longer than 24 hours without a detention hearing in front of a judge or magistrate.

Generally, a juvenile under the age of 7 is conclusively presumed to not be accountable for their actions. After age 7, the law changes. Although a juvenile between age 7 and 14 is presumed to be incapable of committing a crime, if the circumstances show the juvenile was clearly able to distinguish between good and evil during the offense, the presumption is overcome. Finally a person age 14 to 18 is always considered capable of knowing right from wrong unless circumstances indicate otherwise. Juveniles age 16 to 18 may be transferred to “adult” court and tried as an adult for murder, rape, robbery, and kidnapping offenses.

Being charged with delinquency is difficult not only for the juvenile, but for the entire family. If your child is charged with delinquency, you will be in court with the child throughout the entire process. You need an attorney that will properly represent your child, protect their rights, and fight for your family with loyalty and compassion.

I understand that children sometimes use poor decision making and judgment, perform acts under pressure of their peers, make childhood mistakes, and do not realize the long term effects of their actions. It's part of growing up.

Fortunately, juvenile courts in Tennessee pride themselves on rehabilitation of children, not necessarily punishment. You need an attorney who will fight for your child and ensure they have the opportunity to continue down the right path in life.